

## PART III

| 1                                | 2                                                          | 3                 | 4                                                          |
|----------------------------------|------------------------------------------------------------|-------------------|------------------------------------------------------------|
| Session and Chapter              | Short Title                                                | How far continued | Amending Acts                                              |
| (10)<br>6 & 7 Geo. 6.<br>c. 44.  | The Rent of Furnished Houses Control (Scotland) Act, 1943. | The whole Act.    | 10 & 11 Geo. 6.<br>c. 43.<br>12, 13 & 14<br>Geo. 6. c. 40. |
| (11)<br>9 & 10 Geo. 6.<br>c. 34. | The Furnished Houses (Rent Control) Act, 1946.             | The whole Act.    | 12, 13 & 14<br>Geo. 6. c. 40.                              |

## CHAPTER 2

An Act to provide for disregarding certain temporary abatements of salary in calculating gratuities under sections thirty-nine and forty of the Superannuation Act, 1949, and allowances and gratuities of officers mentioned in Part I of the Third Schedule to the Supreme Court of Judicature (Consolidation) Act, 1925; and for reckoning as unestablished service certain service in the armed forces and other similar service performed by persons recruited to the civil service by reconstruction competitions after the thirtieth day of June, nineteen hundred and fifty.

[15th December 1950.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Disregard of temporary reductions of salaries for certain purposes.

1.—(1) For the purpose of calculating the amount of any gratuity payable under section thirty-nine or section forty of the Superannuation Act, 1949, to or in respect of a person who has been employed in the civil service of the State in an unestablished capacity or in part-time service, no account shall be taken of any temporary abatement of his pay made pursuant to any general direction issued by the Treasury for the purpose of effecting economy in national expenditure.

(2) For the purpose of calculating the amount of any allowance or gratuity payable under section one hundred and twenty-eight of the Supreme Court of Judicature (Consolidation) Act, 1925,

or under the Superannuation Acts to or in respect of the holder of any office specified in Part I of the Third Schedule to the said Act of 1925, no account shall be taken of any temporary abatement of his salary made pursuant to any general direction issued by the Lord Chancellor with the concurrence of the Treasury for the purpose of effecting economy in national expenditure.

(3) This section shall be deemed to have come into force on the first day of October, nineteen hundred and forty-nine.

2.—(1) This section applies to any person who, after whole-time service at any time since the second day of September, nineteen hundred and thirty-nine in any of the armed forces of the Crown or in the merchant navy or the mercantile marine or in any of the women's services specified in the First Schedule to the Superannuation Act, 1946, enters or has entered the civil service of the State at any time after the thirtieth day of June, nineteen hundred and fifty through recruitment by a competition determined by the Treasury to be a reconstruction competition. Reckoning of war service, etc.

(2) Subject to the provisions of subsection (3) of this section, any such whole-time service as aforesaid served by a person to whom this section applies after attaining the age at which, in the opinion of the Treasury, he might but for war circumstances have been appointed to the civil service of the State in the class in which he is in fact appointed shall be treated for the purposes of the following enactments, that is to say:—

(a) section thirty-nine of the Superannuation Act, 1949 (which provides for gratuities on the retirement or death of persons serving in an unestablished capacity);

(b) section three of the Superannuation Act, 1935, and section thirty-eight of the Superannuation Act, 1949 (which relate to the superannuation of civil servants having previous service in an unestablished capacity),

as if it had been continuous service in an unestablished capacity.

(3) In subsection (2) of section one of the Superannuation Act, 1946 (which enables the Treasury by regulations to exclude from subsection (1) of that section service reckoned for the purposes of the grant of naval, military or air force non-effective pay and other similar service) references to subsection (1) of that section shall be construed as including references to subsection (2) of this section, and the regulations in force thereunder at the commencement of this Act shall have effect accordingly.

3. There shall be paid out of moneys provided by Parliament any increase attributable to the provisions of this Act in the sums which, under any enactment, are payable out of moneys so provided. Expenses.

Interpretation,  
construction  
and citation.

4.—(1) References in this Act to any enactment shall be construed as references to that enactment as amended by any subsequent enactment, including this Act.

(2) This Act and the Superannuation Act, 1949, shall be construed as one with the Superannuation Acts, 1834 to 1946.

(3) This Act may be cited as the Superannuation Act, 1950 ; and this Act and the Superannuation Acts, 1834 to 1949, may be cited together as the Superannuation Acts, 1834 to 1950.

*Table of Statutes referred to in this Act*

| Short Title                                                  | Session and Chapter           |
|--------------------------------------------------------------|-------------------------------|
| Supreme Court of Judicature (Consolidation) Act, 1925 ... .. | 15 & 16 Geo. 5.<br>c. 49.     |
| Superannuation Act, 1935 ... ..                              | 25 & 26 Geo. 5.<br>c. 23.     |
| Superannuation Act, 1946 ... ..                              | 9 & 10 Geo. 6. c. 60.         |
| Superannuation Act, 1949 ... ..                              | 12, 13 & 14 Geo. 6.<br>c. 44. |

### CHAPTER 3

An Act to make further provision as to the salary and superannuation of the Comptroller and Auditor General.  
[15th December 1950.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Salary of  
Comptroller.

1.—(1) His Majesty may by letters patent grant to the Comptroller and Auditor General a salary at the rate of four thousand five hundred pounds per annum.

(2) The person who held the office of Comptroller and Auditor General on the first day of October nineteen hundred and fifty shall be entitled to a salary at the rate aforesaid from that date as if it had been duly granted to him under this section ; and for the purpose of any enactment relating to superannuation (including the following provisions of this Act) his salary for